

24STCV01707 24STCV01707

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-06-26

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Case Number: 24STCV01707 Hearing Date: June 26, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV01707

JASON

CROWE vs AUTO FIX COLLISION CENTER INC., et al.

June

26, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION TO COMPEL RESPONSE TO FORM INTERROGATORIES. MOTION TO COMPEL SPECIAL INTERROGATORIES. MOTION TO COMPEL REQUEST FOR PRODUCTION OF

DOCUMENTS. MOTION TO DEEM REQUEST FOR

ADMISSIONS ADMITTED. MOTION TO COMPEL

DEPOSITION OF PERSON MOST KNOWLEDGEABLE (PMK)

RULING:

The Court continues all
five Motions to August 7, 2026, at 8:30 a.m., in Department 311.

On or before July 31,
Plaintiff may serve and file up-to-date Replies, and Defendants may serve and
file up-to-date Oppositions.

Plaintiff and Defendants
are ordered to meet and confer in good faith regarding supplemental responses
and setting a deposition date.

I.

BACKGROUND

On January 22, 2024,
JASON
CROWE (Plaintiff) filed a Complaint against AUTO FIX COLLISION CENTER INC.,
LOURDES M FUNES, MUSTAFA (Defendants), listing Causes of Action for:

(1)

BREACH OF WRITTEN CONTRACT

(2)

BREACH OF ORAL CONTRACT

(3)

BREACH OF IMPLIED CONTRACT

(4)

BREACH OF IMPLIED COVENANT OF GOOD FAITH AND FAIR DEALING

(5)

INTENTIONAL MISREPRESENTATION

(6)

NEGLIGENT MISREPRESENTATION

(7)

PROMISSORY FRAUD

(8)

NEGLIGENCE

(9)

CONVERSION

(10)

ACCOUNTING

(11)

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS.

Plaintiff alleges that Defendants
breached a written contract, including by not completing automobile body,
mechanical and paint repairs, and by overcharging,

On December 17 and 19,
2025, Plaintiff filed five Discovery Motions to compel Defendants' initial
responses to form and special interrogatories, and document and admission
requests, and deposition attendance, on grounds that Defendants failed to
respond. Plaintiff additionally requests monetary sanctions as to each Motion.

Defendants opposed, based
upon their attorney's declaration, filed June 11, 2026, explaining that
responses to special interrogatories and admission requests have been served, and
document responses hopefully will be served before the hearing. Also,
Defendants explain the delay due to counsel substituting into this case, taking
a planned vacation, and time needed to respond.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only
show that discovery was properly served on the opposing party, the time to
respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code
Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300

[compelling initial document requests].)

A motion to compel

compliance as agreed with a request for production of documents is based upon a

showing that the respondents failed “to permit an inspection ‘in accordance

with that party's statement of compliance.” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903. See also Code Civ. Proc., § 2031.320,

subd. (a).)

A motion to deem admitted

requests for admissions lies based upon a showing of failure to respond timely.

(Code Civ. Proc., § 2033.280, subd. (b); Demyer

v. Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393, 395, disapproved on other grounds by Wilcox v. Birtwhistle (1999) 21 Cal.4th

973, 983.) “[A] motion to have admission requests

deemed admitted may not be granted where the record establishes ... that (1)

proposed responses to the requests have been served prior to the hearing on the

motion and (2) such responses are in substantial compliance with the provisions

of section 2033, subdivision (f)(1).” (Tobin

v. Oris (1992) 3 Cal.App.4th 814, 828, overruled on other grounds by

Wilcox v. Birtwhistle (1999) 21 Cal.4th 973, 983, fn.12.)

A

motion lies to compel deposition attendance or document production, after

service of a deposition notice, where a deponent fails to appear at, or proceed

with, a deposition, without having served a valid objection under section

2025.410. (Code Civ. Proc., § 2025.450, subd. (a).)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions,

unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he

phrase “substantial justification” has been understood to mean that a

justification is clearly reasonable because it is well grounded in both law and

fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58

Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden

of proof, the burden shifts to the opposing party attempting to avoid a

monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200

Cal.App.4th 1424, 1435.) Courts may determine substantial justification based

on the “whole picture” of the discovery dispute, including where parties

partially prevailed as to some discovery items in dispute, or where discovery

concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

Plaintiff moves to compel

Defendants' initial responses to written discovery, and deposition attendance. Additionally, Plaintiff requests \$1785.00 in monetary sanctions per Motion, against Defendants or their counsel, for their failure to serve timely responses, which resulted in statutory waivers of discovery objections.

Defendants' attorney

declaration explains reasons for delay, and reports service of some discovery responses, and still working on document responses.

Where respondents served

untimely discovery responses after parties have filed motions to compel initial responses, courts have broad discretion as to ruling, including: 1) denying the motion as moot, in whole or part, where valid responses without objections have resolved the motion; 2) awarding requested sanctions; 3) allowing moving party to take the motion off calendar; 4) considering the motion as voluntarily narrowed in scope; 5) compelling responses without objection, where no legally valid responses have been provided, as to some, or all, interrogatories; 6) treating the motion as one to compel further responses, and ruling accordingly, with, or without, a separate statement; 7) ordering the parties to meet and confer; 8) ordering moving party to file a separate statement; or, 9) ordering the motion off calendar while requiring the propounding party to file a motion to compel further responses. (Sinaiko Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko regarding court considering supplemental responses served after motion].) Under some circumstances, it may be an abuse of discretion for a court to treat a motion as being one to compel further responses without requiring a separate motion. (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778 [addressing motion to deem admissions admitted].)

Because trial has been

continued per the Stipulation and Order filed May 12, 2026, and defense counsel declares an intent to further serve discovery responses, the Court orders the

parties to work in good faith to informally resolve all five Motions.

IV.

CONCLUSION

Accordingly, the Court continues
all of the Motions.